

OPINION

Opinion: Berkeley does not need Flock surveillance tech to stay safe

The chair and vice chair of Berkeley's civilian police oversight board explain why they oppose expanding the city's Flock Safety network ahead of a Thursday vote.

By Josh Cayetano and Leah Wilson

May 6, 2026, 3:25 p.m.

This Thursday, May 7, Berkeleyans will be presented with a false choice: Flock or their safety.

Berkeley City Council is poised to approve the largest expansion of police surveillance technology in Berkeley's history and further entangle Berkeley with Flock Safety — a vendor that **over 75 jurisdictions** have deemed untrustworthy, has facilitated data-sharing with federal immigration authorities, and has not demonstrated either the technical capacity or will to adhere to Berkeley's data privacy standards.

What public safety emergency has prompted this reckless push to partner with Flock?

There is none. Despite what council members **advocating** for expanding our contract with Flock would have you believe, Berkeley does not need Flock to be safe. Crime in Berkeley has **plummeted**. The same is true **nationwide**.

But we do not need to debate the benefits of Automated License Plate Readers, drones, or surveillance cameras to question the wisdom of approving a contract with Flock.

In September 2025, community leaders **sounded the alarm** about Flock Safety's data sharing practices, and we **strongly urged** the city to consider whether another vendor aligned with Berkeley's values could be awarded the contract. After all, Flock's technology **enables cooperating local police** to search large swaths of data to assist federal immigration authorities.

Read an op-ed, published in the Berkeley Scanner, by Councilmembers Shoshana O'Keefe, Mark Humbert, Rashi Kesarwani and Terry Taplin about why they support renewing and expanding the city's contract with Flock.

We expected the city to take the common-sense route of issuing a “request for proposal” so that other vendors could compete with Flock Safety — not just on price, but also on other features including contract terms and conditions, data privacy features and technical specifications. That did not happen.

Instead, the Berkeley Police Department returned months later with a proposal to expand the Flock contract and created a false zero-sum narrative that refusing to contract with Flock will cause Berkeley to lose the benefits of surveillance technology altogether.

As the chair and vice chair of Berkeley’s Police Accountability Board, we are frankly frustrated by the lack of transparency and conflicting information we have received from the city about its relationship with Flock Safety. After many back-and-forths, and after we reviewed correspondence dating back to 2023, we realized that BPD has continuously sought to expand its exclusive relationship with Flock Safety without seriously considering potential alternatives.

Just read BPD’s **pitch** to the City Council. When it proposed acquiring four new technologies (drones, community surveillance videos, Flock Nova, and the Real Time Crime Center) and consolidating those under one Flock contract, BPD did not list any alternative vendor. Instead, it suggested that the choice was between Flock and no surveillance program at all.

When BPD described the “experience of other entities,” BPD conveniently omitted all of the publicly available information about how dozens of jurisdictions have canceled their Flock contract and how police chiefs in places like **Mountain View** have voiced their loss of confidence in Flock. We requested that BPD supplement its report with that additional information, but the department ignored us.

As we dug deeper into the procurement process (which is about as fun as it sounds), we also realized that BPD has shifted its procurement vehicle for contracting with Flock three times in the last four weeks to try to satisfy the requirements imposed by the City’s Purchasing Manual. Now, BPD is asking the council to “piggyback” on a bid submitted to a Texas school district for school safety technologies. That probably makes as little sense to you as it does to us.

We were told that Flock Safety is the only vendor who can deliver the needed caliber of surveillance technology on a single platform.

We do not think BPD can substantiate that claim without a competitive process, which is the most reliable way to identify the best vendor for Berkeley’s purposes. But even if that claim were true, Flock supporters have not shown why consolidation matters enough to ignore the warning signs and proceed anyway. Not one jurisdiction we polled, large or small, consolidates its entire surveillance system with one vendor.

For a city in fiscal crisis that was recently found wanting on its procurement practices by its own City Auditor, approving an expanded contract with Flock Safety without competitive solicitation is not something we can support — or explain to the public we serve.

The City Council meeting on Flock cameras will be held at 5 p.m. on Thursday, May 7.

Josh Cayetano is chair of Berkeley's Police Accountability Board, a practicing attorney and a graduate of UC Berkeley's law school. Leah Wilson is the vice chair of the accountability board and former president of the Berkeley school board. She has worked as court executive officer of Alameda County and executive director of the state bar of California.

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